



DEPARTMENT OF THE NAVY
NAVSUP FLEET LOGISTICS CENTER NORFOLK
1968 GILBERT STREET SUITE 600
NORFOLK VA 23511-3392

IN REPLY REFER TO

J&A FY 26-059

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Identification of Agency and Contracting Activity.

The requiring activity is U.S. Navy Forces Surveillance Support Center (FSSC), Chesapeake, VA; the contracting activity is NAVSUP Fleet Logistics Center (FLC) Norfolk, Contracting Dept., BUMED/FM&C Directorate.

2. Description of the Action Being Approved.

This is a sole source action to be awarded as a new contract to BAE, Australia. This procurement action supports the provision of system sustainment support, dedicated services required in support of the Direct Digital Receivers (DDR_x) for the Relocatable Over-the-Horizon Radar (ROTHR) system in Texas, Virginia, and Puerto Rico. The DDR_x were procured from BAE Australia on a sole source basis under contracts HHM402-15-C-0059 and N00189-22-C-Z021. Sole source modification# N00189-22-C-Z021-P00003 was issued to provide the required sustainment services for a one-year period (26 June 2025 -25 June 2026) to allow time to place a long term (base year plus four one-year options) stand-alone sustainment contract, also on a sole source basis to BAE Australia Limited. The total estimated value for this sustainment services stand-alone contract is [REDACTED] for a base year plus four one-year options.

3. Description of Supplies/Services.

The ROTHR System is a relocatable, land based, High Frequency (HF) Radar, which provides wide area surveillance in support of tactical forces afloat through the early detection and tracking of targets of interest, such as aircraft and ships. The ROTHR system is tasked to provide detection and monitoring of drug smuggling aircraft and ships to support the Office of the Department of War Coordinator for Drug Enforcement Policy and support counterdrug operations, providing long range detection of narcotic trafficking ships and aircraft as well as filling gaps in the radar coverage provided by fixed and mobile platforms. The U.S. Navy Forces Surveillance Support Center (FSSC) operates, maintains, and sustains three ROTHR systems in Virginia, Texas and Puerto Rico.

The digital receiver system delivers significant technological advantages when compared to traditional analog receivers utilized in HF systems to include larger frequency band of operation, larger channel bandwidths, higher repetition frequencies, longer coherent processing times, ability to process different waveforms and the ability to simultaneously execute air, maritime and other missions concurrently by utilizing different digitized channels for each mission.

As stated above, the digital receivers were fielded by BAE Australia at the ROTHR Texas location under the DIA issued contract# HHM402-15-C-0059. This contract is now complete as final delivery was made in November of 2024. The Government has a current contract with BAE Australia Limited N00189-22-C-Z021 for additional receivers for the Puerto Rico and Virginia ROTHR locations which was awarded on a sole source basis at a value of \$34.8M in September of 2022. This contract is ongoing as the final delivery under contract# N00189-22-C-Z021 is scheduled for 15 September 2027. The instant requirement is for repair and engineering support services for the DDR_x System in ROTHR Texas location for the base year. The sustainment support services for the Virginia and Puerto Rico locations will be included in the option years once the respective DDR_x are delivered for those

locations. The contractor will provide maintenance, technical support, software support, risk management framework (RMF) support and asset retrograde repair and return process.

The required DDRx sustainment services are needed by 25 June 2026 which is when the current sustainment services CLINs expire under contract N00189-22-C-Z021.

The resultant contract will be funded with FY26 Operations and Maintenance (O&M) appropriations in the estimated amount of [REDACTED] million dollars for the base year. The primary place of performance for these services will be a combination of the ROTH Texas and BAE Australia facilities.

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1) - the supplies or services needed by the agency are available from only one responsible source and no other type of supplies or services will satisfy agency requirements, as implemented by FAR 6.302-1.

5. Rationale Justifying Use of Cited Statutory Authority.

BAE Australia developed and produced the digital receivers for the ROTH Texas radar system JCTD under the Defense Intelligence Agency (DIA) contract HHM402-15-C-0059 which was competitively awarded in 2015. The digital receivers for the ROTH Texas location were procured via modification HHM402-15-C-0059 P00023 to this contract on 25 September 2020 for the amount of \$13,507,857.00. This contract is now complete as the final delivery was made in November of 2024. Subsequently, FLCN BUMED/FM&C Directorate awarded a sole source contract to BAE Australia Limited N00189-22-C-Z021 for additional receivers for the Puerto Rico and Virginia ROTH locations at a value of \$34.8M in September of 2022. This contract is ongoing as the final delivery under contract# N00189-22-C-Z021 is scheduled for 15 September 2027.

As stated above, the digital receivers for the ROTH Texas location were procured and delivered by BAE Australia, therefore the repair and engineering support services for the DDRx systems must be provided by BAE Australia. BAE's digital receiver technology is proprietary to BAE Australia and cannot be repaired by any other company. Per Memorandum of understandings (MOUs) between the DoW (Department of War) of the US and the DOD of Australia signed on 5 August 2020 and 28 September 2020, the US Government will not sell, transfer title to, disclose, or transfer possession of any Australian origin Defense Article and Defense services that have been provided by the Australian DOD under the MOU to any Third Party. This MOU prevents any other contractor from performing the required sustainment services on the Australian designed and produced, digital receivers.

A different supplier providing these services would introduce a major risk of technical problems and vacate the MOUs in place with the Australian DOD. The ROTH system is sensitive in nature, and it relies on all systems and components to be performing at a high level of performance. To achieve this high level of radar performance, FSSC must have all receive and transmit sites equipment at a mission capable level to properly maintain radar performance at a high level. New complexities will be introduced if the sustainment support is not provided by BAE Systems Australia Limited. By receiving the services from a company other than BAE System Australia, the Government will not be able to meet its mission requirements.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable, including a Description of Market Research, if applicable, and a List of Interested Sources, if any.

Prior to the ROTHr Texas digital receiver system level requirements finalization in 2020, FSSC hosted multiple industry vendors at the Virginia Rx site during the summer of 2019 to demonstrate their digital receiver capabilities. [REDACTED] also demonstrated a limited number of digital receivers in Virginia and Texas. These demonstrations informed FSSC of the capabilities and technologies of individual digital receivers and informed requirements development. All of the vendors demonstrated some level of proficiency in collecting a signal from an antenna, maintaining spectral purity and processing data through the front end of a receiver. However, BAE's field test demonstration of their DDRx yielded performance characteristics that were the closest to meeting the required specifications. The BAE DDRx was superior to its competition in the realms of technical and commercial maturity. BAE has approximately 20 years of iterative development, deployment, testing and improvement of DDRx(s) for the intended HF radar purpose which is far greater than any competitor. The BAE unit tested during the field test demonstration was [REDACTED] and it represented a massive refinement over the [REDACTED], and a significant refinement [REDACTED]. The evolution to [REDACTED] represented a significant investment by the US government to provide a receiver with the necessary sensitivity and fidelity, which could readily translate to use with ROTHr. The maturity was also apparent in areas such as automated gain control, command and control, calibration, diagnostics, data handling and reliability and maintainability. [REDACTED]

[REDACTED] Furthermore, BAE Systems is the only vendor that has deployed an integrated digital receiver system into operational OTHR radars. BAE's receiver systems are utilized in the only comparable OTHR system in the world, [REDACTED] [REDACTED] were all deployed at another [REDACTED] is in the process of being developed to be deployed into the same operational US system known [REDACTED].

During the pre-solicitation phase of the most current DDRx production contract N00189-22-C-Z021, a sources sought was posted to NECO (Navy Electronic Commerce Online) in accordance with PGI 206.302-1(d), and SAM.gov (Government-wide Point of Entry) on 24 August 2021. The notice summarized the requirement along with its unique challenges. Interested companies were asked to provide a capabilities statement to include similar corporate experience references. No responses regarding the digital receiver requirement were received.

A sources sought notice was posted to the Government-wide Point of Entry (GPE) on 8 January 2025 for the sole source DDRx sustainment support modification# N00189-22-C-Z021-P00003. Two companies, [REDACTED] responded to the sources sought to express their interest but only [REDACTED] submitted a "capabilities statement" as requested by the sources sought notice. [REDACTED] is a company that specializes in cybersecurity requirements and their capabilities statement didn't address anything specifically related to the instant requirement of ROTHr DDRx Sustainment Support Services. It is believed that the both responses received were automated responses as neither company provided relevant corporate experience or addressed how they would overcome the challenges justifying the sole source nature (providing sustainment support to digital receivers that are proprietary to BAE Systems Australia and would vacate MOUs between the U.S. and Australian governments). Based on this review, a determination was made that neither of the

responders possess the technical capability to perform the required tasks and meet the government's need.

7. Determination of Fair and Reasonable Cost. The Contracting Officer has determined that the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

In accordance with PGI 206.302-1(d), a sources sought notice was posted to the Government-wide Point of Entry (GPE) on 28 January 2026. One company, [REDACTED], responded to the sources sought to express their interest but did not submit a capabilities statement as requested by the sources sought notice. As noted above, [REDACTED] also submitted a response to the sources sought for the sole source sustainment services modification# N00189-22-C-Z021-P00003 and did not provide a capability for that requirement either. It is believed that the [REDACTED] response was an automated response as they did not provide relevant corporate experience or address how they would overcome the challenges justifying the sole source nature (providing sustainment support to digital receivers that are proprietary to BAE Systems Australia and would vacate MOUs between the U.S. and Australian governments). Based on this review, a determination was made that [REDACTED] does not possess the technical capability to perform the required tasks and meet the government's need.

To date, no other sources expressed an interest in the requirement.

For these reasons and those set forth in Paragraph 5, Fleet Logistics Center Norfolk, BUMED/FM&C Directorate has no plans at this time to compete future contacts for the types of supplies/services covered by this document. If another potential source emerges, Fleet Logistics Center Norfolk, BUMED/FM&C Directorate will assess whether competition for future requirements is feasible.

9. Contracting Point of Contact

The point of contact at Fleet Logistics Center Norfolk, BUMED/FM&C Directorate is Lauren Lauver, who may be contacted at lauren.a.lauver.civ@us.navy.mil.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance:

Signature	Name (Printed)	Phone No.	Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Signature	Name (Printed)	Phone No.	Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. To the extent that the Justification value is >\$250K and ≤\$750K, the Contracting Officer's signature below also represents approval of the Justification.

Signature	Name (Printed)	Phone No.	Date

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

To the extent that the Justification value is >\$750K and ≤\$15M, the Competition Advocate's signature below also represents approval of the Justification.

Signature	Name (Printed)	Phone No.	Date